

24STCV32770 24STCV32770

County: los-angeles

Division: Civil Law and Motion

Department: 512

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Case Number: 24STCV32770 Hearing Date: July 1, 2026 Dept: 512

HEARING DATE: Weds., July 1, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Bazgir

v. Integon Preferred Ins. Co., et al. COMP.

FILED: 12-12-24

CASE NUMBER: 24STCV32770 FAC FILED: 04-10-25

NOTICE: OK SAC

FILED: 09-15-25

PROCEEDINGS: MOTION

FOR PROTECTIVE ORDER

MOVING PARTY: Defendants

Integon Preferred Insurance Company, Allstate Insurance Company of California,
and National General Insurance Company

RESP. PARTY: Plaintiff Parisa Bazgir

MOTION FOR PROTECTIVE ORDER

(Code Civ. Proc., §§ 2025.420, 2031)

TENTATIVE RULING:

Defendants Integon

Preferred Insurance Company, Allstate Insurance Company of California, and

National General Insurance Company's Motion for Protective Order Prohibiting, or Alternatively, Limiting the Scope of Deposition for Meghan Jauhar; Conducting a Single Deposition of Yesenia Rodriguez; and Limiting Scope of Document Requests to Christopher Ostrowski and/or His Affiliated Entities is GRANTED in part.

The Motion is DENIED as to the deposition of Jauhar.

The Motion is GRANTED as to the deposition of Rodriguez. To the extent that Rodriguez designated as an expert witness, she may have her deposition taken again during expert discovery.

The Motion is GRANTED as to the production of documents from Ostrowski. Plaintiff's counsel is to limit the scope of the request.

Moving parties are ordered to give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on June 17, 2026 ☐ Late ☐ None

REPLY: Filed
on June 23, 2026 ☐
Late ☐ None

ANALYSIS:

I.
Background

On December 12, 2024, Plaintiff Parisa Bazgir ("Plaintiff") filed the instant action against Defendants Integon Preferred Insurance Company ("Integon Preferred"), National General Insurance Company ("National General"), and Allstate Insurance Company of California ("Allstate") ("Defendants") and Does 1-30.

On April 10, 2025, Plaintiff filed a First Amended Complaint ("FAC") against Defendants.

On September 10, 2025, Plaintiff filed an Amendment to Complaint naming Integon National Insurance Company ("Integon National") as Doe No. 1.

On September 15, 2025, Plaintiff filed a Second Amended Complaint ("SAC").

On October 14, 2025, Integon Preferred filed an Answer to the SAC.

On November 14, 2025, the Court approved the parties' Stipulation and Protective Order. (11/14/25 Order.)

On December 22, 2025, Allstate filed an Answer to the SAC.

On March 3, 2026, Integon National was dismissed.

On June 5, 2026, Defendants filed the instant Motion for Protective Order Prohibiting, or Alternatively, Limiting the Scope of Deposition for Meghan Jauhar; Conducting a Single Deposition of Yesenia Rodriguez; and Limiting Scope of Document Requests to Christopher Ostrowski and/or His Affiliated Entities (the "Motion").

On June 17, 2026, Plaintiff filed an Opposition.

On June 23, 2026, Defendants filed a Reply.

II.

Legal

Standard

“Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. The motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2025.420, subd. (a).)

The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions: ... [t]hat the deposition be taken only on certain specified terms and conditions; [t]hat the scope of the examination be limited to certain matters.

(Code Civ.

Proc., § 2025.420, subds. (b)(5), (b) (10).)

III.

Discussion

Parties' Arguments

Defendants move under Code of Civil Procedure section 2025.420 and 2031 for a protective order to:

(1) prohibit the deposition of Ms. Jauhar, as Plaintiff has expressed an intent to seek testimony without limitation from a witness without any personal knowledge of the fact of this case, or at a minimum, limit the scope of Ms. Jauhar's deposition to the foundational aspects of her declaration; (2) permit a single deposition (as opposed to two separate depositions) for Ms. Yesenia Rodriguez in her capacity as IPIC's PMQ regarding the subject claim and in her individual capacity as a percipient witness; and (3) prohibit or limit the scope of any document requests to Christopher Ostrowski or his affiliated entities.

(Motion, p. 19.) Defendants

submit three declarations in support of the Motion – namely, a declaration from Christy Gargalis, attorney for Defendants; a declaration from Angela Martin, attorney for Defendants; and a declaration from Christopher Ostrowski, an accident reconstructionist and owner of Precision Collision Analysis, LLC. (Motion, Gargalis Decl., Martin Decl., Ostrowski Decl.)

In Opposition, Plaintiff contends

the Motion is “an attempt to prevent Plaintiff from obtaining discovery concerning the very issues Defendants have placed at the center of this case.” (Opp., p. 1.) Plaintiff states Defendants have failed to establish good cause for any of the requested restrictions and, instead, “seek broad protective relief based on conclusory assertions of burden and positions that are inconsistent with those they previously advanced during the parties’ meet-and-confer efforts and Informal Discovery Conference.” (Opp, pp. 1, 5, 9-13.)

In Reply, Defendants contend

Plaintiff mischaracterizes certain aspects of prior discovery discussions and the IDC. (Reply, pp. 2-4.) Further, Defendants concede “there is no statutory requirement that [Rodriguez’s] depositions be combined” but argue that “requiring Ms. Rodriguez to appear for two separate depositions to testify on these same materials is not ‘necessitated’ by any objections asserted in her capacity as a PMQ” of Integon Preferred. (Reply, pp. 3-4.) Defendants also argue that the probative value to be gained from Ostrowski’s requested document production would be minimal compared to the hundreds of hours of review. (Reply, pp. 4-5.) Finally, Defendants contend that Plaintiffs have failed to establish Jauhar as a percipient witness. (Reply, pp. 6-7.)

Analysis

Here, the Court finds the Motion

is accompanied by a meet and confer declaration, and the parties met and conferred regarding the issues raised in the Motion. (Code Civ. Proc., § 2025.420, subd. (a).)

However, the Court finds Defendants

are not entitled to a protective order regarding Jauhar’s deposition, Rodriguez’s deposition, or Ostrowski’s production of documents. Indeed, the Court finds Defendants did not meet their burden of establishing that good cause exists for the Court to grant any of the relief requested. (Code Civ. Proc., § 2025.420, subds. (b)(5), (b) (10).)

Deposition of Jauhar

As to Jauhar's deposition, the parties do not dispute that Jauhar, an employee of Allstate, provided a declaration in support of Defendants' upcoming motion for summary judgment. (See Motion, pp. 11-12.) Given Jauhar's declaration accompanying the motion for summary judgment, and Defendants' undisputed prior agreement to allow Jauhar's deposition, the Court finds the instant circumstances warrant Jauhar's deposition.

To the extent Defendants' preemptively request the Court limit the scope of Jauhar's deposition and provide evidence of email discussions between the parties' counsel wherein Plaintiff's counsel states limitations of Jauhar's deposition are inappropriate (Motion, Martin Decl., Exh. N), the Court finds Defendants' broad request insufficiently supported. Defendants have set forth neither evidence nor legally adequate reasons as to why questions at Jauhar's deposition may not venture beyond the scope of the declaration but within the bounds of the Code of Civil Procedure.

Based thereon, the Motion is DENIED as to the deposition of Jauhar.

Deposition of Rodriguez

As to Defendants' request that the Court order that only one deposition of Rodriguez take place as opposed to two separate depositions, the Court agrees. Plaintiff has not presented any persuasive or sound reasoning that two deposition sessions of the witness would be necessary. To the extent that Rodriguez is designated as an expert witness in the future, she may have her deposition taken again during expert discovery.

The Court finds that two depositions of Rodriguez for these purposes would be duplicative and in fact creates inefficiency in the instant circumstances. The Court reminds Defendants' counsel that instructing a witness not to answer is improper unless the question implicates a privilege, privacy, or a legal conclusion. (See *Rifkind v. Superior Court* (1994) 22 Cal.App.4th 1255, 1259.)

Based thereon, the Motion is GRANTED

as to the deposition of Rodriguez.

Production of Documents from
Ostrowski

As to Defendants' request to
limit the scope of document production from Ostrowski, the Court agrees.

Defendants provide Ostrowski's
declaration stating that producing the documents requested by Plaintiff will
require Ostrowski to review thousands of pages and take hundreds of hours of
work (Motion, Ostrowski Decl., ¶¶ 5-10). Thus, the Court finds this evidence shows the burden is unduly burdensome given
the totality of the circumstances. (See Motion, Ostrowski Decl., ¶ 5.) Here, the underlying action
pertains to a vehicle accident, and Ostrowski is an accident reconstruction
consultant who appears to have conducted a review of the underlying claim for
Defendants. (See Opp., Derbarseghian Decl., Exh. B.) However, Plaintiff's
request for document production from Ostrowski does not provide any limited or
relevant scope of documents requested from Ostrowski to determine the validity
and accuracy of Ostrowski's assessment of the underlying accident.

While Plaintiff is willing to accept
redacted documents from Ostrowski, and Plaintiff states "Plaintiff is willing
to work with Mr. Ostrowski to minimize any legitimate burden," Plaintiff has
not identified limited scope of such documents. Furthermore, Plaintiff has not
identified reasonable search parameters, production protocols, or other
measures tailored to obtain the relevant bias and compensation evidence without
requiring an unnecessary review of every underlying report and invoice by this
reconstruction consultant. The plaintiff has failed to demonstrate any tailored
and flexible parameters around the requested documents or any limited topics.

Based on the foregoing, the
Motion is GRANTED as to the production of documents from Ostrowski. Plaintiff's counsel is to limit the scope of
the request.

IV.

Conclusion
& Order

Defendants Integon Preferred Insurance
Company, Allstate Insurance Company of California, and National General

Insurance Company's Motion for Protective Order Prohibiting, or Alternatively, Limiting the Scope of Deposition for Meghan Jauhar; Conducting a Single Deposition of Yesenia Rodriguez; and Limiting Scope of Document Requests to Christopher Ostrowski and/or His Affiliated Entities is GRANTED in part.

The Motion is DENIED as to the deposition of Jauhar.

The Motion is GRANTED as to the deposition of Rodriguez. To the extent that Rodriguez is designated as an expert witness, she may have her deposition taken again during expert discovery.

The Motion is GRANTED as to the production of documents from Ostrowski. Plaintiff's counsel is to limit the scope of the production of documents.

Moving parties are ordered to give notice.